

Vishram Prasad Chaurasiya v. State of U.P.

Allahabad High Court · Division Bench · 12 September 2022 · Writ-C No. 23347 of 2022 · **Writ disposed; petitioner relegated to a fresh clause 6.5 representation.**

HEADNOTE

On a writ raising grievances against Purvanchal Vidyut Vitaran Nigam Ltd., the Division Bench held that the appropriate remedy is to approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition was disposed of with a direction to file a fresh representation within two weeks; the Executive Engineer must consider all points of objection and pass a reasoned speaking order, preferably within six weeks of receipt.

FACTUAL SUMMARY

Vishram Prasad Chaurasiya invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and officers of Purvanchal Vidyut Vitaran Nigam Ltd., Varanasi Division, including the Executive Engineer arrayed as respondent no. 2. Counsel for the Nigam appeared. The petition raised unspecified grievances against the distribution licensee. The Court heard both sides. The order records no connection, meter, or bill particulars and does not decide the underlying supply dispute on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

representation to Executive Engineer as appropriate remedy

HOLDING

For grievances raised in the writ against the Nigam, the appropriate remedy is to approach the Executive Engineer, Purvanchal Vidyut Vitaran Nigam Ltd., Varanasi Division, invoking clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner shall file a fresh representation with a copy of the order within two weeks; on such filing the Executive Engineer is obliged to deal with it strictly in accordance with law, considering all points of objection, and to pass a reasoned speaking order preferably within six weeks of receipt. ¶ 1

PRINCIPLE TAGS

6.5-representation-as-appropriate-remedy The Court treated a clause 6.5 representation to the Executive Engineer as the appropriate remedy for the petitioner's grievances against the Nigam and disposed of the writ on that footing. ¶ 1

clause-6.5-alternate-remedy-to-writ The writ was not decided on merits; the petitioner was directed to the statutory clause 6.5 machinery instead of a merits grant or refusal in the High Court. ¶ 1

clause-6.5-representation-executive-engineer Respondent no. 2 (Executive Engineer, PuVVNL, Varanasi Division) was directed to decide a fresh clause 6.5 representation by a reasoned speaking order after considering all points of objection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S GRIEVANCES AGAINST THE NIGAM

The Court did not examine the underlying supply dispute and left it to the Executive Engineer on a fresh clause 6.5 representation. ¶ 1

